

THE DELINQUENT

Vol IV, No. 7

July, 1914

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VOLUME IV, No. 7.

JULY, 1914

THE DELINQUENT

(FORMERLY THE REVIEW)

A MONTHLY PERIODICAL, PUBLISHED BY

THE

NATIONAL PRISONERS' AID ASSOCIATION

AT 135 EAST 15th STREET, NEW YORK CITY.

THIS COPY TEN CENTS.

ONE DOLLAR A YEAR

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THE “PIRATES” AT SHERBORN REFORMATORY

[Here is a fine human interest story about the Women’s Reformatory Prison in Massachusetts, and the remarkable success the inmates achieved in “The Pirates of Penzance.” The story is from the New York Times of June 21.]

“When a felon’s not engaged in his employment,
His Employment,
Or maturing his felonious little plans,
Little plans,
His capacity for innocent enjoyment,
’Cent enjoyment,
Is just as great as any honest man’s,
Honest man’s.”

This sums up pretty fairly an affair at Sherborn a few days ago. Sung by the ordinary policeman chorus of any ordinary Gilbert and Sullivan revival, the sentiment would seem trite enough. Sung by the felonious themselves, by forgers, by the “enterprising burglars,” it takes on a keener significance. It comes home.

It was an amazed audience that sat in the chapel of the Women’s Prison at Sherborn, Mass., and listened to “The Pirates of Penzance,” presented by fifty-five of the two hundred women who are “doing time.” It was an audience which did not always get its cue as promptly as an audience should, for in several places where the Gilbert and Sullivan Company intended it should laugh it openly dabbed its eyes with handkerchief or blew nose violently.

In the first place, it had gasped over the grim humor of “The Pirates of Penzance” as presented by a set of offenders against property and public order anyway. It gasped again when a lusty opening chorus of attractive “pirates” demanded that somebody pour, oh, pour, the pirate sherry—for it

was “sherry” that landed on a lot of them in Sherborn. And it could not for the life of it smile when the jolly pirates explained to it that,

Although our dark career
Sometimes involves the crime of stealing,
We rather think that we’re
Not altogether void of feeling.

And a few in the audience realized that the pretty little Mabel, with her long, dark curls and her clear soprano voice, was an old offender, serving her third term at Sherborn. A few remembered, not without a shiver, that the pirate at the end of the row, splendid in a blue and white striped cape slung from his—her—shoulder, a dagger stuck in her belt, had assisted at having her husband cut up in pieces, and, missing the electric chair by a minute and a half, was here in Sherborn for life.

It was hard to realize that one was within prison walls. These girls, most of them girls of the streets, supposedly the “dregs” of society, looked and acted like anything but dregs. Accustomed to the cheapest sort of music, the cheapest sort of amusement before they came here, they had nevertheless entered into the Gilbert and Sullivan spirit. They managed the difficult choruses superbly; they attacked their recitatives with understanding.

They had been branded, most of them, as unmanageables, incorrigibles. Yet they had been trained to a point of almost complete co-operation. The mentally defective were not only managing difficult alto, but getting around the preposterous vocabulary of the “Pirates,” such as the square on the hypotenuse and the crimes of Heliogabalus. And more than one in that audience leaned over to say to his neighbor: “If they can be trained to do this, they can certainly be trained to do something else.”

It was this realization that brought the audience, made up for the most part of prominent social workers and city officials from Boston, to its feet at the closing ensemble with all fifty-five on the stage. Policemen and pirates took off their hats and waved to the applauding audience that crowded around the stage, and the audience clapped and waved back. It was a recognition of a fact that both sides too often forget, the fact that criminals are not, after all, so different from non-criminals. It is largely because the criminal does not realize his relation to the rest of society that he breaks with it, and as for

society, it forgot the human bond when it began clapping its offenders into dungeons and treating them as complete aberrations.

Mrs. Perle Wilkinson is the reason why Gilbert and Sullivan have invaded Sherborn. Mrs. Wilkinson's official title is "chaplain." But no chaplain ever took to himself such an amazing set of duties, and Mrs. Wilkinson admits the name must be changed.

Probably the girls themselves, as they rehearsed for the past eight or nine months under the "chaplain's" direction, have not realized that they were enjoying an advantage which no other amateur performers in the country could command. For Saturday's production of "The Pirates of Penzance" contained the original "business"—the "business" witnessed by those of us who saw the first presentation of the Gilbert and Sullivan operas in this country.

Mrs. Wilkinson was one-time chorus mistress for the D'Oyly Carte troupe, her husband singing the principal baritone roles. She has for many years had experience in chorus and choir training, and in addition had charge of the House of Refuge at Randall's Island at the time when both boys and girls were admitted to that institution. It is a curious combination, and one which has brought results of the most amazing nature.

The girls have been working since September on the "Pirates." It should not by rights have taken so long, explained Mrs. Wilkinson, but the voices were in bad shape. Most of them were hard and inflexible, patterned on the nasal attainments of the cheap vaudeville performer. An understanding of the music had slowly to be created. Then, just as everything was within a few weeks of completion, the parole board would descend and release the chief soloist and five or six of the best voices in the chorus, and work would have to be begun all over again.

This might have happened a week or so ago, for the prima donna's time had expired and she was free to go. Which would have meant that "Pirates" would again have been postponed, probably for a much longer time, for Mabel's part is difficult and requires a real voice. Mabel sent word to her family and stayed another week.

It was not only the fifty-five who actually took part in the opera who presented the "Pirates." The whole prison, two hundred women, gave it.

Long ago khaki skirts and blue prison dresses were piled up on one side of the machine room, and the most amazing materials took their place. Turkey reds and purples, tinsel of silver and gold, gauzy pinks and yellows surprised those machine needles, which for thirty-six years have been bobbing up and down through sombre colors. A visitor, looking in to see those who had been sentenced to “hard labor,” would have been amazed to see them putting gold braid on three-cornered hats, sewing buttons on policemen’s uniforms.

All the women attended rehearsals. They brought their crocheting, their bits of sewing, and sat quietly while the picked fifty tackled long words and difficult choruses. This in itself was a big concession. The women were all supposed to be in their rooms, and it was argued that they would be restless and unmanageable, given so much liberty. But they weren’t. They looked forward with the keenest enjoyment to the rehearsals, and it was because the company was accustomed to playing before an audience that not a member showed the slightest evidence of “stage fright,” or even of self-consciousness, at the final performance.

While the performance was going on the rest of the women were working on the prison grounds, in the kitchen, in the laundry, in the machine rooms, but they were as excited about the event as though they were to be present. Whenever a matron appeared, or Mrs. Hodder, the head of the prison, stopped to say a word to them, they asked eagerly about the guests, were there many of them, had the Governor arrived, did they get a sword for the Major General?

Upstairs in the chapel a squad of girls worked for several hours before the performance, setting the stage. The scenery had been painted by the girls themselves and would have done credit to Granville Barker. Towering rocks, a rolling ocean in the back, a cave that looked as though it might harbor any number of murderous pirates, and real trees. Little birches had been cut down, and the girls worked long and earnestly setting them in pails of water behind “rocks.” In spite of a couple of savage onslaughts, one from the pirates in full force with daggers drawn, and one from the energetic police, the trees stayed upright with only a couple of quiverings.

The team work displayed by these outcast members of society, who do not fit into our “organization,” was something of a revelation.

“Get out of this dust, Julia,” cried the stage hands dragging birch trees to their places, as the pirate king appeared in the chapel doorway. “Don’t you know dust will ruin your voice?”

“Mis’ Wilki’son, don’t you touch them trees, you’ll get your hands so rough you can’t play this afternoon,” and, “Mabel, I thought you was goin’ to lay down and get rested—you’ll be all worn out.”

“Emma, don’t let Mis’ Wilki-son sweep the floor—Mis’ Wilki-son, let us have a matron up here and you go and get some rest, we can fix everything now.”

What this means will be realized fully only by those who know the general temper of the women confined in our penal institutions, who have seen the sullenness, the bitter vindictiveness, the complaining spirit of the greater part of them. The girls of the old-style reformatory or prison have much time to themselves, and they put in every minute of it inspecting and piling up their grievances. Even when they are occupied they are thinking about themselves; naturally, they take little interest in doing kitchen or laundry work, or in running machines.

Sullenness and distrust, a hardened suspicion of everything that is done for them, are the biggest difficulties in the way of the woman who tries to “get at” the girls. Mrs. Wilkinson has shifted the emphasis. She does not think so much about “getting at” the girls. She tries rather to get them away from themselves.

She does not bother with the girls’ little sordid histories. She sees in them so many voices, so many dancers. Her mind is intent on just one thing—the operetta, the minstrel show, the Easter chorus that is in progress. Her enthusiasm is unlimited. The girls see her up at 5 o’clock in the morning getting ready for rehearsals, trying out voices, arranging tableaux, planning costumes down to the smallest detail, as if this were the most important thing in the world, and they gradually forget to sulk, and turn in to work.

It was Mrs. Wilkinson and the “Pirates of Penzance” that brought one of the most refractory inmates of the whole two hundred at Sherborn up out of the punishment cell where she was confined at regular intervals. There was no question about it, the girl had a remarkable voice, and the opera had to have her, and she would simply have to keep out of the punishment cell. Which

she did, and on Saturday sang the part of the Pirate King with a dash and a finish that brought forth a storm of applause.

She regards Mrs. Wilkinson as her especial charge. And, indeed, many of the girls have a maternal sort of attitude toward this little chaplain, with her wide blue eyes, her earnestness, her trick of asking advice from everyone, her intentness on her work, and her way of taking it for granted that everyone else is just as absorbed and just as enthusiastic as she is.

Mrs. Wilkinson has been at Sherborn a little more than a year. The "Pirates of Penzance" is by no means the first achievement. All the public holidays are celebrated. Last year "The Sleeping Beauty" was given by the lowest grade in the prison, in which eleven nationalities were represented, many of the cast being unable to read and write. Fourth of July is always a gala day, and the festivities include a minstrel show. This year the minstrel show, given out of doors in a charming little amphitheatre on the prison grounds, was a deviation from the usual half-circle, end-men arrangement. There was a little darky cabin, choruses of cotton pickers, and a substantial plot.

Every month there is a birthday party, given in honor of all those whose birthdays come in that month. An extra dish is provided for supper, and instead of regular chapel exercises there is an entertainment of some sort by the girls themselves. Folk dancing has been held under the trees, the kitchen girls danced "Pease porridge hot," the sewing girls "Reap the flax," and the laundry girls a Swedish clothes washing dance.

From all this it might be gathered that we were stepping rather far across the line and giving our offenders a better time in prison than they have out of it. The ultimate object of these entertainments, of all this work which seems at first glance rather irrelevant to correction of criminal tendencies is something quite different from the mere pleasure to those who take part.

In the first place, concerted action has been the slogan for every prison reformer. In all too many instances, however, it has been enforced concerted action, and that is of little or no benefit. In all the thirty-odd years that the women of Sherborn have been working in the shop, in the laundry, on the farm there was probably no spontaneous co-operation whatever. The best that could be said was that they were not sitting idle in their cells.

The most important contribution which Sherborn's chaplain, more or less unconsciously, has brought to that curious community is a new sort of inhibition. Up to this time the correction of the wayward has been through the medium of morals. About the best thing that could be done while a woman was serving her term was to attempt to awaken in her a sense of her own responsibility, of her duty, of the standards by which other people lived and which were necessary for comfort and health and ultimate goodness. It was an attempt to get into working order that moral inhibition that keeps the greater part of us from forging checks when we need money, or murdering our enemies when we hate them.

Mrs. Wilkinson has a new inhibition—the æsthetic. Fifty per cent. of the women in Sherborn are there for acts which to the normal person would be unspeakably repulsive. The average woman is held back from filthiness by her æsthetic sense, even if she isn't by her moral sense. By giving the women who for a year or two come under the State's care an understanding of any one art, especially of music, which appeals most directly, a standard is given from which the individual never backslides. Moral standards depreciate, but the person who has been educated past ragtime and past bad pictures never really enjoys them again. And while the æsthetic inhibition has less direct bearing on conduct than the moral, while it does not always have force enough to be effective, it is one more chance for the girl who goes out from under the State's supervision to stay out.

This is, of course, one of the greatest problems of the penal institution—how to hold the discharged prisoner to the standards which she has but just grasped during her term.

“If we could only keep them here until we had set them squarely on their feet,” said Mrs. Hodder, the head of the prison. “The great difficulty is in dove-tailing life here with the life that they meet outside. People are so merciless, so cruel—they force the girl straight down again into the life she came from.

“The first practical step which our reform institutions must take is the creating of the indeterminate sentence, which will allow the heads of institutions to keep their charges until they are in some degree capable of taking care of themselves. For instance, in Massachusetts a sixteen-year-old girl can be committed to the State Industrial School for Girls and be under

its custody and its excellent training until she is 21. For the girl of 17, committing the same offense, there is only this institution, strictly penal in character and sentence, where she may serve a minimum of eight months and then be released.

“We have made some advance in this State in that the Parole Board never releases a girl if we oppose her release, so that we are able to keep the girls much longer than formerly, when they served the exact sentence and then were discharged. But it is very hard for us when a girl knows that her sentence is for one year and we keep her for two. She is resentful and uneasy all through the second year.”

Sweeping changes have been made in Sherborn since Mrs. Hodder’s arrival there three years ago. Sherborn is called a reformatory, but it is a prison, and, although Mrs. Hodder has removed many of the obsolete features of it, remnants of an old penology, she has not gone to the other extreme and turned punishment to pleasure and correction to play.

“What I hope to do,” she explained, “is to develop this reformatory as an ‘Industrial Training Institute for Women.’ We have had the handicap of ‘hard labor’ stamped on our commitments. This has tended to make of Sherborn a purely industrial plant.

“What I want to do before I get through is to put in commercial factory standards in speed and efficiency. Up to this time work here, like work in many of the prisons throughout the country, is little more than a stop gap. The training which the worker gets is practically no training at all. Hours are long, inspection is desultory. The worker who would go out from our machines into a white goods factory would not be able to measure up in speed and efficiency to any but the novice.

“The practical thing to do is to institute the factory standard, introducing some competitive basis. Then there must be correlation with the educational side of the institution. Before you can get up any interest from the women who sew on shirts they have to know something about shirts. They must be taught something about fabrics, how they are made, how to buy them—the condition of the industry—which they represent.

“Along with the shop course must go other things—domestic training, cooking, hand-sewing, millinery, and mending, and all of them

supplemented by class-room training. In short, we must offer industrial training of a sort which would enable a girl to earn her living when she leaves us.

“This is the greatest difference between the policy which we are working out at Sherborn and the policy pursued by Dr. Davis at Bedford Hills in New York State. The emphasis at Bedford is, I believe, too much on the educational side. The emphasis on Sherborn has been, I know, too much on the industrial side. The two must be properly balanced.”

The reformatory at Bedford Hills can hardly be compared to the prison at Sherborn. The problem of the latter is much more complicated by reason of the fact that it is a prison for all mature offenders, including women of forty and over, while Bedford is nearer the Lancaster Industrial School, which receives girls under the age of seventeen. The older women criminals of this State are sent to Auburn.

Mrs. Hodder is energetically opposing the age grouping which our penal institutions have followed for many years.

“Segregation and classification,” she says, “this is the next practical move in our prison reform. What classification has been done has been for the most part according to chronological age, which is absurd.

“An examination of 427 cases from the reformatory showed that, should all women under fifty be grouped in one institution, the long-sentence women—almost invariably first offenders, and of a much higher type of intelligence than short-sentence women—would be classed with a large number of alcoholics and some of the worst of the sex cases, together with a number of definitely feeble-minded. In fact, almost every type of criminal would come into the under-thirty class, and by no means are the young offenders the least hardened and the most reformable.

“Segregation, as we are fast coming to realize, must be according to degree of viciousness and according to intellectual and not chronological age. And the classification must be greater. The cottage plan is the only one by which successful reform work can be accomplished, such a plan as Dr. Davis has worked out at Bedford Hills, for example.

“Under such a system, which allows for very small groups, the women can be carefully graded, the downright vicious woman kept from the one whose

weakness is nothing more than alcohol or vagrancy. Under such a system we can care for the extreme cases, which are always the most perplexing problem—those violent cases for which we now have to employ the punishment cell. For these women, who are often border-line cases, should be prescribed steady out-of-door work. My idea is to have a sort of movable shack and a cage where a violent case of this kind could have the opportunity for solitary confinement, which undoubtedly is the best treatment, and for working in the ground, making things grow.

“Of course the prison should not have its progress clogged by these borderline cases any more than it should be hampered by care of the distinctly feeble-minded. Out of 427 women 17 per cent. of those below 30 years of age were found to be definitely feeble-minded, 25 per cent. mentally subnormal, making nearly half of the number with some marked mental defect. These should, obviously, be separated from those who are mentally sound and given special instruction, which would be the case were we to classify according to intellectual age.”

Sherborn Prison is, because of lack of funds, a long way from the cottage system—it is still a prison, built on the dormitory plan. But its “cells” are fair sized rooms, clean, and with a large window to let in the sunshine. There are colored pictures and postcards tacked on the whitewashed walls of most of them. The room of one of the “lifers” was unusually attractive, potted plants at the window, a rocking chair, and a table covered with a spotless cloth, edged with a border of the finest kind of crochet made by the prisoner herself.

And just before lights-out time Saturday evening it was curious to go down the corridor and see outside of each barred door a neatly folded policemen's suit and helmet, or a pirate's gay colored cape, with dagger and cocked hat on top. And behind the barred doors could be heard, in a subdued undertone:

His capacity for innocent enjoyment,
'Cent enjoyment,
Is just as great as any honest man's,
Honest man's.

FRANCIES AND HIS FIVE THOUSAND ACRES

[At Bellefonte, Pa., the State of Pennsylvania has bought what is probably the most wonderful farm prison site in the world. The editor of the *Delinquent* made a recent visit to Warden Francies, and can enthuse over the site without any reservations. The following article, from the Pittsburg Gazette Times, tells of Francies and his farm.]

Prison reform is to be realized in the Western Penitentiary now in course of erection in the Nittany valley, Centre county, about five miles from Bellefonte, Pa.

One hundred and thirty convicts with terms ranging from 2 to 15 years, too busy with their day's labor or their evening's sports to think of evil, are building the new penitentiary or tilling the soil. Only nine hours a day, that time allotted for sleep, are the prisoners under lock and key. They go about their various duties under the direction of a guard or overseer, but the shotgun or rifle, usually accompanying such officer, is conspicuous by its absence.

The prison gives promise of being the ideal penal institution of the world.

The site is ideal for the work to be accomplished. It stretches from the Nittany Mountains across the valley, almost to the Muncey Mountains, being more than six miles long at its greatest length. In width, it reaches out in some places over three miles and covers an area of 5,250 acres.

Fertile farms in this vicinity have been combined into one magnificent estate. In a few years it will be one of the most beautiful parks found anywhere. Aside from the building to be erected for prison purposes, prisoners will build roads and bridges, remove unsightly objects from farms, trim out forests into sylvan retreats and in a thousand ways add to the work of nature.

How long it will take to complete the entire plan of Warden John Francies is even with him a matter of much conjecture. He does not believe the plant will be ready to transfer the entire prison body from the Woods Run institution to the Centre county farm for several years. While there are 130 men now employed at the work there, this number will be increased from time to time, but he believes it will be several years before the plans are worked out. Warden Francies hopes in the future to see the prisoners of the new penitentiary manufacturing such goods as are required in State institutions. He believes that it would be better for the State if furniture for use in State institutions were manufactured in the prison than to send to Michigan for such furniture, and that shoes for the State's charges could also be made by prison labor instead of the money being sent to Massachusetts, the seat of the shoe industry.

Should he be able to work out his plans with the aid of the State governing bodies, he hopes to be able to pay each prisoner for labor, deduct the amount of the prisoner's keep from his earnings and turn over to those dependent upon the prisoner the surplus, thus preventing the privation to families and saving the State and municipal governments money spent through charity departments for the maintenance of those families.

Events leading up to the acquiring of the land for penitentiary purposes were by no means favorable. Even after the Board of Prison Inspectors had decided to adopt the farm idea, many obstacles were to be overcome. Warden Francies, in asking the legislature on February 14, 1911, to pass a bill which had been drawn up authorizing a purchase of land and the erection of a penitentiary and other necessary details, opened his address by declaring "if the Western Penitentiary was not a tragedy it would be a screaming farce."

The legislature, after listening to his arguments, passed the bill without a dissenting vote, there being no semblance of party feeling.

With the act signed by Gov. Tener, the matter of a location was then taken up and in all over 200 sites were offered. All of these had to be examined and the merits and defects of all gone into carefully.

The Rockview farm territory was finally decided upon by the warden, and when he asked the governor and the prison inspectors to view that site it was unanimously decided to accept it. Options were secured on over 5,000

acres, but some little technicality developed and it became necessary to reoption the big tract comprising 40 parcels of ground. It was finally purchased at an average cost of less than \$50 an acre. Payment was made direct to the owners by the State treasurer.

The first work on the new prison was done in July, 1912. At that time Warden Francies took one prisoner from the Western Penitentiary to the farm and put him to work tearing paper from the walls of the old home on the Ishler farm. A week later two more prisoners were taken up and the next week four, to be followed a week later by eight prisoners. After that the prisoners were taken up as needed.

The old Ishler home was thoroughly renovated and changed to suit their needs. As the number of prisoners increased, the needs became greater and last September work was begun on the erection of a larger building. An annex was built to the home. It will later be known as the merit house. The annex is a two-story concrete building and is regarded as one of the finest pieces of reinforced concrete construction in the State. It is practically one piece. The first floor contains a bath room, with numerous showers, a dining room and kitchen. The second floor contains one large room which, although now occupied as sleeping quarters, will be a resting room. In the old farm house now occupied as sleeping quarters the prisoners will sleep when matters are adjusted later. Fifty men will find accommodations in the merit house.

The concrete in this building will later be faced, giving it the appearance of dressed stone construction. Every bit of stone and sand in the construction of this annex was taken from the farm. In fact, stone and sand for all buildings and roads will be quarried on the farm. Only cement will be purchased.

A pen and corn crib near the home was removed and the best material saved and used in the construction of a machine shop and laundry. An old barn and other outbuildings likewise furnished lumber for a power house and other temporary buildings.

Timber worth \$3,500 has been taken from the woods on one tract and converted into lumber needed about the place. It is estimated that a like amount can be cut from the same tract. Although the woods on this farm comprised only a small part of the acreage, the farm cost the State only

\$16,000 and in addition to the lumber taken from it, thousands of dollars worth of limestone has been quarried.

With the passage of the act abolishing hanging, it became necessary to prepare for the new method of execution. The erection of the electrocution house is now under way. The foundation has already been constructed and is a remarkable piece of work. This building will be complete in itself. It will be two stories in height, with wings of one story on each side, and about 230 feet long and 31 feet wide. In the basement of the main building will be the heating and ventilating system and dynamos for generating the current.

The first floor will contain the office of the deputy warden and observation room. The second floor will contain cell rooms and the electrocution chamber. Such an arrangement will prevent tampering with the wires from the outside of the building. The concrete walls will be two feet thick with an imbedded network of one-inch iron bars.

This is the first building to be erected within the acreage allotted for the prison proper. The entire group of buildings will be enclosed with a 30-foot high concrete wall. The enclosed area will be about 50 acres, or five times the acreage now enclosed on the North Side in Pittsburg. Inside this inclosure will be the complete prison, including the big cell room where the prisoners will sleep, workshop and hospital, which occupies a site on the hill, half a mile from the railroad and facing the beautiful gap in the Nittany Mountains known as McBrides Water Gap.

The site presents marvelous natural advantages. Spring Creek will be harnessed and experts declare it will flow even during the driest season at the rate of 100,000,000 gallons during each 24 hours. The riparian right to the State of this stream has been estimated to be worth no less than \$1,000,000, just 80 per cent. of the total cost of the entire farm. This trout-filled mountain creek will furnish the power that will turn the wheels of industry on Rockview farm, provide the electric light and fill other wants and still leave a surplus in reserve power. For three miles up the beautiful valley its waters will be held back in check until the time arrives for its use. A dam 55 feet high at the breast will be constructed. More than six miles across the farm and up in the mountain is a stream which will furnish 1,000,000 gallons of pure mountain water.

The question may be asked, in what relation does the warden of the Western Penitentiary stand with his convict farm hands? He is one of the boys. Could you but see him in the evening on the top of one of the great hills near the merit house during the baseball game you would be convinced of the statement. He jumps from his automobile, flings his coat on the ground and takes a seat on the grass among the prisoner spectators and is prepared to enjoy the game.

In the working out of this undertaking the welfare and future of the prisoner after he has served his sentence has not been lost sight of. This is best illustrated in the words of Warden Francies.

“Our mission is to turn out not worse men, but better men.”

THE TREATMENT OF THE MISDEMEANANT

[This excellent summary of the present correctional treatment of the misdemeanor was read by Amos W Butler, chairman of the Committee on Corrections, at the National Conference of Charities and Corrections in Memphis, in May, 1914.]

Who knows how many persons are confined in local jails in the United States? Who comprehends the magnitude of the problem involved? How many appreciate its relation to the individual, to his family, to society?

The Bureau of the Census tells us that 452,055 persons were committed to county and municipal prisons in 1910, under sentence or for non-payment of fine. We call them misdemeanants. It is the name ordinarily given one whose offense the law does not deem sufficiently serious to warrant a State prison sentence. If the ratio of commitments to the whole number received is the same throughout the United States as in Indiana, it is probable that one and one-half million people annually come under the influence of these local prisons.

We know that jails are the spoil of partisan politics. They are maintained largely on the fee basis. Most of them were built without any proper idea of the purpose they were intended to serve. As a rule they are insanitary, they lack proper provision for separating the sexes and there is no means of employment. Often they are crowded beyond their capacity. There is little attempt to classify the prisoners. They congregate in the corridors and the older and more experienced in criminal ways instruct the others in vice, immorality and crime. In how many such institutions are women not only waited upon but searched by men?

The late Samuel J. Barrows once remarked: "Back in 1876 a committee of the New York Legislature said: 'There is no one source of crime more operative in the multiplication of thieves and burglars than the common jail' and that statement still remains true of a large number of jails throughout the country."

Many of you have heard Dr. F. H. Wines' scathing denunciation of these institutions. Delegates to the International Prison Congress who visited this country in 1910 declared our local jail system as bad as it was centuries ago in Europe. "Every jail I saw ought to be wiped off the face of the earth," said Thomas Holmes, secretary of the Howard Association of London, and this was the general verdict of these distinguished prison officials and penologists. It was the idleness of the prisoners, the lack of fresh air, the indiscriminate mingling, the long-delayed trials that impressed them so unfavorably. "I asked two colored men how long they would be in and they said they did not know; that they had waited eleven days for a trial," said Dr. Eugene Borel, professor of law in the University of Geneva, Switzerland. "That is a shocking travesty of justice. In Europe a prisoner gets a hearing within twenty-four hours."

Yet under such conditions as these we detain hundreds of thousands of persons:—The vagrant, the drunkard, the witness, the runaway boy, the first offender, the hardened criminal, the man awaiting trial, the convicted law-breaker. What can we expect but that they will degenerate in body, mind and morals? Even where work is provided, as is done in some larger jails and workhouses, it is under the old contract system, which we should like to see abolished. In some States misdemeanants are employed on the public highways. However successful this may be in some parts of the country, it would probably not be in conformity with the public sense in the more thickly settled communities, or practicable to any great extent in the more northern latitudes.

The whole question of the apprehension, treatment and release of the misdemeanant is of tremendous importance. While prison reforms are coming with surprising rapidity, they have been confined largely to the felon. The misdemeanant has been neglected.

In the first place, what are the qualifications of the average policeman? Ordinarily he is without training or experience. His politics have usually had more to do with his appointment than any other consideration. What part can such a policeman play in an enlightened system of penology?

In a number of States the constitution proclaims that the penal code shall be founded on principles of reformation and not of vindictive justice. How far has that been interpreted in the statute laws? The provision of most of our

State constitutions that justice shall be administered “speedily and without delay” is wholly forgotten. We generally think that the day of imprisonment for debt is past. Yet many jail prisoners are held for debt—the fine assessed against them. The man of means pays his fine and goes free; the man without money suffers imprisonment under conditions which menace health and morals. It frequently becomes necessary for his family to ask for help; sometimes he loses his job. If he becomes embittered, or vindictive, need we wonder at it?

The picture is not all dark. Here and there light is breaking through. We are coming to understand that the policeman can be a social agent, a next friend, an instructor in obedience to the law. We are beginning to regard as the best officer the one who makes the fewest, not the most arrests. In some cities women are being added to the police force, and there are police matrons, and jail matrons, and even women judges.

“Humanizing the courts” is an expression coming more and more into use. Instead of sending to jail men who are unable to pay their fines, judges are releasing them conditionally and giving them a chance to earn the money. The plan works admirably. Judges are finding that their confidence is seldom misplaced. This principle has been enacted into law in Massachusetts and other States. Elsewhere it has been practiced without special authority of law. In New York State the probation law provides for the collection of fines on probation and also restitution on probation.

We are further coming to believe that too many persons are sent to prison. Some States have adopted a system of probation, under which many lawbreakers are reclaimed to society without the stigma of a prison sentence. Probation has been successfully tried in Massachusetts, New York and other States.

We have learned, too, the value of the farm colony for the open-air employment of almost all classes of public wards. This has been applied to the insane in Wisconsin, Massachusetts and Indiana; to epileptics in New York, New Jersey and Indiana; to feeble-minded in Massachusetts, New Jersey and Indiana; to both dependent and delinquent children in many States, and more recently to certain classes of prisoners, including all kinds of misdemeanants of both sexes. What is being done at Cleveland, at Occoquan and at Guelph is well known. The most recent development of

this movement is the New York State Farm for Women Misdemeanants. The simple, inexpensive, yet substantial form of buildings, the freer life and the opportunity to contribute in part at least to their own support, make it far better for the inmates and cheaper to the taxpayer.

In Indiana the first step in this direction came about through the establishment in 1907 of a State workhouse for women misdemeanants as a branch of the Women's Prison at Indianapolis. The institution is entirely in control of women. Then the Board of State Charities began a vigorous campaign for a state farm for male misdemeanants. Conditions in the county jails were shown forth in the following paragraph:

HOW PRISONERS LIVE AND LEARN IN INDIANA COUNTY JAILS.

They live in idleness at the expense of the taxpayer.

They learn vice, immorality and crime.

They become educated in criminal ways.

They degenerate both physically and morally.

In 1913 an appropriation was secured, the land has now been purchased, and work on the buildings will soon begin. The law contemplates that the construction work shall be done largely by State Prison and Reformatory men. The new institution is for men who have a jail sentence of sixty days or more, and prisoners may be transferred from the State institutions whenever room for them exists at the farm. Eventually there will probably be several such farms in the State, and this movement, with proper amendments to existing laws, should in time do away with the use of the county jails for the confinement of convicted offenders, and leave them only as places of detention.

We now look forward to the time when we shall have a form of indeterminate sentence for misdemeanants. The success of this form of sentence for felons in Indiana as in many other States justifies our belief that it will prove valuable in the treatment of misdemeanants. Certainly some improvement can be made over the present illogical short sentence,

which benefits neither the individual nor the public, in whose name he is held.

New York has already taken an important step in this direction. Misdemeanants between the ages of sixteen and twenty-one are to be committed under an indeterminate sentence to the reformatory for this class of offenders, authorized by the legislature of 1912. The site for this new institution has not yet been located. It is the purpose of those interested to place it on a farm and to make it one of the most complete and modern of reformatories.

Another needed reform, State control of county jails, is receiving some attention. J. S. Gibbons, Chairman of the Prison Board of Ireland, said: "I tell you what I think you lose sight of in this country: That all these splendid reformatories deal with merely a drop in the ocean compared with the county and city jails to which your thousands of prisoners go, and where many are manufactured. We were in exactly the same condition up to 1877 when we brought county and city jails out from under local authorities in the United Kingdom. We found the antecedent to all reform was State centralization. In 1877 every prison and jail was put under central administrative authority, and the expenses paid out of the imperial funds. Three acts were passed simultaneously for the three kingdoms. We then began at the bottom, closing all the superfluous ones, and in that way we were able to close about half."

I have the following statement from Sir Evelyn Ruggles-Brise, of England: "The Prison Act, 1877, transferred the Local Prisons of this Country (i.e. prisons for the confinement of all classes of prisoners other than those sentenced to penal servitude) from the control of local 'Visiting Magistrates' to that of the State. The Act came into effect on the 1st of April, 1878, 113 Local Prisons being so transferred. Since that date, their number has been reduced to 56. At the time of their transfer, the Local Prison population stood at 21,030—the highest known. From that date a continuous fall was recorded until 1885, when the numbers reached slightly over 15,000. After a series of fluctuations below and above this number, the population stands at 15,000 at the present time. Relatively to the total population of the country, the figure for 1878 represented 686 committals per 100,000, while that for the year ended 31st March 1912 was the lowest on record, viz., 439 per 100,000."

Massachusetts, perhaps, has led the agitation in this country for State control of county jails. In other States there has been some publicity in favor of such action. An offender against the federal law becomes a prisoner of the United States and is under the direction of the federal judge. Why should one who violates a State law not be a prisoner of the State? That is the theory that underlies the new law for jail supervision in Indiana. Offenders against the State law have been placed under the oversight and authority of the judge of the circuit or criminal court, who is a State official. This judge may say where and how the prisoner shall be detained, and if the jail is unsatisfactory he may condemn it. He is authorized to prescribe rules formulated by the Board of State Charities, which has supervision of all jails and other public charitable and correctional institutions. A violation of these rules, once entered in his order book, is in effect a contempt of court.

While these advance steps have been taken, the reform is by no means general. Most of the States continue to use, unchanged, the system long since discarded in Europe, whence it came. The results are not reformatory. On the contrary, they are destructive alike to the individual and those with whom he later comes in contact. Local jails are recruiting stations for our larger State correctional institutions. We should make greater progress in reformation if we did not first pollute the stream we are going to treat.

The outlook is not bright, but it is by no means hopeless. The evils which exist are the natural result of the system we adopted. Let us change the system. Let us begin at the bottom and study all the steps in the treatment of the offender—his apprehension, detention, trial, conviction, probation, confinement, treatment, employment, conditional release, final discharge. Let us set as our goal:

1. A system of police recognizing character, merit, and efficiency in the personnel and a proper social view for its operations.
2. A prompt hearing for every person arrested.
3. The establishment of juvenile courts for all children's cases.
4. Provision for the care and detention of delinquent children outside the jail.

5. A probation system for adults similar to that of juvenile courts.
6. Separate trials for women offenders.
7. A modification of the present system of fines in order not to discriminate against the poor.
8. Classification of prisoners, confinement of individuals apart from each other and absolute sex separation in county jails.
9. The prohibition of the use of the jail for any other purpose than that of temporary detention.
10. The abolition of the fee system.
11. State control of all minor prisons.
12. The establishment of industrial farms for the convicted misdemeanants.
13. A form of indeterminate sentence for misdemeanants.
14. Their release on parole under supervision.
15. The abolition of contract labor.

The following members of the Committee on Corrections approve and sign the report:

Major R. W. McClaughry
Julian W. Mack
Arthur W. Towne
Frank E. Wade
Joseph P. Byers
John J. Sonstebly
Quincy A. Myers
W. H. Moyer
A. J. G. Wells
J. A. McCullough
John H. Dewitt
Archdeacon B. M. Spurr

Mr. E. Stagg Whitin disagrees with what is said about the employment of convict labor on public highways in the more thickly-settled northern States.

EYTINGE

By Charles Wheatley.

[In the State Prison of Arizona is a life prisoner who has made a remarkable record. The *Delinquent* has followed with great interest Mr. Eytinge's business career while inside the prison, and now, through an article from the Ohio State Journal, presents Mr. Eytinge's story in part.]

Down in Florence, Arizona, in the State Prison they have penned up a Daytonian for life on a charge of murder. This man went into prison an outcast ready to die—or rather about to be killed by tuberculosis. He had been a “con man,” forger and all-around crook, and today, seven years after his conviction, he occupies a prominent place in the business world.

The man in question is Louis Victor Eytinge, born in Dayton in 1878. At the age of three his parents separated. His mother was a talented musician, while his father had been actor, broker and gambler. Sometime after the separation young Eytinge went to live with an uncle. He was educated in the First District school, Central high school, spent two years at St. Mary's Institute and one year at the University of Notre Dame.

At the age of 16 Eytinge started on his life of crime by forging a check. He went from bad to worse, and was soon known from east to west and north to south by the list of bad paper he had left behind. Many times his relatives kept him out of jail by straightening out difficulties into which the young man drifted, but finally they became tired of this and refused to have anything further to do with him.

Cut off from home's ties, Eytinge became even more desperate and finally ended up in the Ohio State Penitentiary following his arrest and a daring attempt at a big jail delivery. While in the penitentiary Eytinge was known as a “bad one” and when released it was found that he was suffering from the advanced stages of tuberculosis. This was at the age of twenty-seven. When relatives learned of his physical condition they weakened in their determination to do no more for him. They sent him to Arizona with an

allowance of one hundred dollars per month. He was to remain away from Dayton and live within the law.

Eytinge had not been in Arizona very long, however, until he was under suspicion of murder. A man with whom he had become quite friendly and whom he had taken care of in a financial way was found dead in the desert one day after Eytinge had been seen to leave the city with him for a buggy ride. When the body was found Eytinge had disappeared. He was found later in California and in his pockets were some of the belongings of the dead man.

Eytinge was brought back to Arizona and placed on trial for his life. He was convicted on circumstantial evidence after William A. Pinkerton, one of the greatest detectives of the time, had declared that it was improbable that Eytinge had killed the man “as his criminal bend did not gallop in that direction.” Judge A. C. Wright, of Phoenix, who defended Eytinge, was so sure of the prisoner’s innocence that he went into his own pocket to pay for the appeal of the case.

Eytinge was convicted and sentenced to life in prison. How long can he live in prison? That was the question asked by all who had seen him on the witness stand. Eytinge was near death’s door at the time. His allowance had been cut off and he did not have the funds with which to purchase fresh milk and eggs, two delicacies almost absolutely necessary for the tubercular patient. The State prison was then at Yuma, Arizona. It was a hell hole with its mosquitoes which swarmed into the cells that looked out on the Colorado river. The quarters were damp, dark and dirty, and afforded excellent means of killing a man who at the time was ready to die.

But right there is the story. Eytinge was not ready to die. He was not 30 years old. He clung to the hope that something would bring about his release. He wanted to live, wanted to breathe again the fresh air of freedom and hobnob again with the pals, association with whom had placed him behind steel bars. Eytinge was still a crook.

Enough of the crook! Let us get to Eytinge the business builder and man. It is a great, broad jump we admit, but the telling of how Eytinge accomplished it is a thousand times easier to do than the battle which Eytinge himself had to go through in bringing about that end. Seven years ago Eytinge was a crook of the first water, seven years, mind you, and—

today Eytinge is a man. He is looked up to by professional advertising writers the country over. His business letters are the best that are being written today. Eytinge is the star of them all.

The strange part of this great accomplishment is the manner in which it was brought about. Eytinge made the road light for himself. He started out with weak hands to carry the torch that showed him the way. Today Eytinge is his own light; he has thrown away the torch and walks alone. Honesty is his greatest asset, and it was through the writing of business letters that Eytinge found his way.

When Eytinge entered the State prison he realized that he must find some means of making money. One could not forge checks in prison. Eytinge was placed in the chronic ward. Around him were Indians, Mexicans and others who in their spare moments made hat bands, watch fobs and other articles out of horse hair. They decorated these with rosettes hammered out of Mexican dollars. These articles were sold whenever possible to chance visitors at the prison, but it was a slow way of making money.

And then one day the big idea came to Eytinge! Opportunity knocked on the steel bars and Eytinge was there to talk to Her! The crude handiwork of the prisoners was the vehicle by which Eytinge began to make his way. He began by writing letters to retail dealers on the outside asking them to take the agency for the hat bands, belts, watch fobs and other articles. It was not long until the money began to pour in. There was a big demand for the articles, but it was the letters that Eytinge had written that opened up the field. In these letters Eytinge had given the dealers a straightforward account of what the articles really were. He told the truth absolutely and unvarnished, and one day he discovered that he had been doing this.

Does honesty pay? This was the question that Eytinge asked himself. He did not have to ask others—he had the proof before him. He had discovered that honesty did pay and that it paid well. But just at that time this new business received a severe setback. Prison officials became suspicious that many of the letters going out from the prison were not what they purported to be. Some of the salesmen were suspected of filling their letters with fake statements which were little short of appeals for help.

Word went out from the warden's office that each prisoner could write but two letters a week. Eytinge had been dealing with forty retail merchants.

Many a man would have thrown up the sponge and quit. To have thirty-eight customers taken away in that manner would have proved a shock that few concerns would have been able to withstand. But Eytinge did not admit defeat. He soon recovered from the shock and saw that something must be done. Two letters must be made to do what forty had been doing before.

The wholesale field was the only thing left. Eytinge began again through that channel. And the letters he wrote! They were full of business from the "Dear Sirs" to the "Yours Very Truly." These letters did not whine. Eytinge did not have the time nor space for that. He had to talk business, and he talked it so well that it was not long until the two letters were doing all that the forty had ever done.

In the meantime a new administration had taken hold of affairs in Arizona. The State prison was removed from the banks of the Colorado up the Gila Valley to Florence, and with this change came a change for the better in Eytinge's health. When he entered the penitentiary at Yuma he weighed 119 pounds and now he weighs 190 pounds, is the picture of health and physicians declare that he is cured of tuberculosis.

Finding himself had given Eytinge two things. It gave him a new self, one of which he was as ignorant of as you or I, and it also gave him health. The necessity for money with which to fight off death had done this and it had been his desire for money that had placed him in a position where he had to get it by some other means than by placing some one else's name on a check.

By this time Eytinge's letters had begun to attract the attention of people other than those with whom he was dealing. He had become a student of criminology also, and when Governor George P. Hunt, the first Statehood governor of Arizona, began his fight for better penal laws after his inauguration in February, 1912, Eytinge had published a booklet of which he was the author, dealing with this question. A noted sociologist has pronounced this to be the cleverest thing ever published on the question.

Magazines soon began to find Eytinge a man worth telling their readers about. Advertising booklets such as "Letters," published in Chicago; "Printers Ink," and others sent men to Arizona to "write Eytinge up." In this way he became well known to men who held high positions in the advertising field. His advice was sought by business houses whose sales

forces needed bolstering up, and he has also been offered numerous positions as business manager and business counsel.

Eytinge has made thousands of dollars out of his business since in prison, but in an article a fellow prisoner has written about him it is said that Eytinge is in debt. Why? Well, principally because he is a man, and goes out of his way to help others. These laws of ours give a discharged prisoner a five-dollar bill and a cast-off suit of clothing when he starts out to face the world. Eytinge says this is not enough, and thousands agree with him, so when he sees a man leaving prison who is deserving and in need, he is the first to come forward with financial aid. He has helped hundreds of men fight through the courts for their freedom, and the families of hundreds of prisoners can thank Eytinge for money that has tided them over the prison term of the head of their house.

Don't forget that Eytinge now before you is the man who seven years ago entered the penitentiary many thought to die. Yes, the old Eytinge is dead—Eytinge, the crook, has passed away, but it has left an Eytinge whom the world will be glad to greet. Peter Clark Macfarlane, a Collier's writer, says this of Eytinge: "They had penned him up to die. They sent him to jail, a crook, and lo, his voice was a power for honesty."

That is the way Eytinge is spoken of by hundreds who have become acquainted with him through correspondence and the few who have taken the trouble to visit him in his work shop. Among Eytinge's first really influential friends after he got on the right track were McCrary, the old parole clerk at the prison, and J. J. Sanders, the new parole clerk, who was appointed when Governor Hunt made Robert B. Sims warden of the institution. Sims had never had any dealings with prisoners or penitentiaries before, but he had some ideas as to how they should be run. One thing that he remembered, which the wardens of many States seem to have forgotten, is that prisoners are human beings.

These three men helped Eytinge to pull himself up out of the rut. He was made a "trusty" and given a clerkship in the parole clerk's office. These were about the first honest men Eytinge had ever associated with. Honest men to him up until that time were "rubes" and "dubs" whose money he looked upon as his own. But in his efforts to help the parole clerks guide the footsteps of the prisoners who had been given a chance through the parole

law, Eytinge found that happiness can come to a man by doing something for someone besides himself.

Lecturing did not bring these things about. It was the man's ability to see for himself, and his horizon was the prison walls. Here he saw before him hundreds of men who had violated the laws of society, and he saw also that the happy ones were those who had violated no laws but were trying to help those who had. Step by step Eytinge was bringing himself up out of the mud. He declares today that the happiest moments of his life were those in which he found that he was regaining the confidence of those who had lost all faith in him.

One of the best indications of the regard in which advertising men of the country hold this prisoner is the fact that a paper written by him was read during the convention of the Associated Advertising Clubs of America, which was held at Toronto, Canada, June 21-25. This paper received greater applause than any other read before the convention, and the delegates were so enthusiastic over it that they voted to send Eytinge a vote of thanks.

The paper was read on Thursday at the close of the sessions when many of the visitors were anxious to get away for their homes, but 300 men remained in the hall in rapt attention while the paper was being read. A storm of applause swept through the hall as the reader concluded the message from the man who "puts his brains in an envelope."

It has been a long, hard struggle for Eytinge. Will it win him his freedom? That is the question many are asking. No one can tell. Perhaps the law will unbend and open the gates to him sometime. Those who know him are hoping that such will be the case, and many are already doing what they can to bring about this result. That Eytinge has hopes that such a thing will come about goes without saying. He has served the average length of time that a "lifter" serves in Ohio, and he is a better man than many of those who are now released from prisons through pardons or influence.

EVENTS IN BRIEF

[Under this heading will appear each month numerous paragraphs of general interest, relating to the prison field and the treatment of the delinquent.]

The Ethics of Governor Blease.—The executive of South Carolina, who has pardoned 1200 convicts in three years, has written about it all. Here are some of the reasons he gives for pardons.

In telling why he paroled a negro named Sam Gaskins, convicted of manslaughter, the Governor wrote:

“This negro, being engaged to a negro girl, called to see her and in fooling with a pistol it went off and killed her. It seems to have been a very sad accident. However, after a second thought, possibly it was for the good of humanity, for had they married no doubt they would have brought forth more negroes to the future detriment of the State.”

In explaining why he pardoned J. Allen Emerson, a white man, who was serving a life sentence for murder, he said that the imprisonment of Emerson had seriously impaired the health of the man’s sister. “Her life,” the Governor states, “is worth more to her and her children and is worth more to the citizenship and motherhood of this country than the incarceration of her brother is worth to the State.”

In pardoning Roland Parris, who was convicted of assault and battery on his brother-in-law, with intent to kill, the Governor explains that Parris was protecting his sister from abuse. “I congratulate him,” the Governor says, “for being man enough to protect his sister from a drunken husband; in fact, I think there should be an appropriation made by which the Governor could award him a gold medal of honor for his action.”

The Governor thinks that if any white man calls another a certain vile epithet and is killed the verdict should not be greater than manslaughter. If a negro applies the epithet to a white man he doesn’t care to say what he thinks the verdict ought to be, but “people may draw their own conclusions.”

Germans to See Prisons.—An unofficial tour of inspection of American prisons and reformatories by Prussian Government officers will be made during the month of August. The Prison Association of New York has been asked to arrange the details of the proposed tour. The chairman of the delegation will be Dr. Karl Finkelnburg, who for many years has been prominent as a German prison warden, and who has recently been promoted to the position of director of Prussian prisons under the Ministry of the Interior, a position which had been occupied by the late Dr. Krohne.

Dr. Finkelnburg, who will arrive upon the Emperor about the end of the first week in August, will be accompanied by Professor Darmstaedter, of the University of Berlin, and also by a member of the Prussian Parliament. The tour of correctional institutions will cover a period of thirty-five days, during which time many of the most important prisons and reformatories of the Eastern and central positions of the country will be visited.

In recent years American correctional institutions have been frequently the object of careful study by foreign countries. In 1910, several hundred foreign delegates not only attended the International Prison Congress at Washington, but made a ten day's tour, by invitation of the Federal Government, of many institutions. In 1913 a tour of inspection was arranged for four official representatives of the Prussian Government—Messrs. Plaschke, Schlosser, Hiekmann, and Remmpis. During a month and a half nearly fifty separate institutions were carefully inspected. The official report to the Prussian Government of these gentlemen has not yet been received from that Government by the United States.

The German Government is discussing the proposed revision of the penal law of Germany. Some of the most modern and successful features of American prison and reformatory management are being carefully considered in this connection.

A "Relic of the Dark Ages"—So the American newspaper correspondents called the Vera Cruz prison in Mexico.

Most famous of all Mexico's prisons, noted for the untold thousands tortured within its walls, the castle prison of San Juan de Ulua, stands today on a little island overlooking Vera Cruz pretty much as it stood in the centuries of its existence. On April 28 the flag of Mexico fluttered down from its flagstaff. The stars and stripes rose in its place as Captain Paul Chamberlain and a company of marines from the North Dakota took possession.

In his despatch to the navy department reporting the taking over of the fortress Rear Admiral Fletcher said:

"The prison has been taken over under mutual agreement made between myself and Colonel Vigil, in charge, which agreement was signed and approved by Admiral Badger. There are in the prison 43 prisoners who have been sentenced for crime, 75 who have been accused of crime but have not been brought to trial and also 325 who have not been accused of any misdemeanor whatever. These 325 were arrested mostly within the last two months in order to be forced into the federal army and for no other reason. The above data were obtained from the officer in charge. The conditions in the prison under which the 325 men are living are described as frightful."

Secretary Daniels directed the release of these 325 men, ordering that the seventy-five awaiting trial should be held pending investigation by the American authorities into the charges against them.

"No stage manager putting on 'The Count of Monte Cristo' could imagine anything more creepy than the sight which met the eyes of the American officers when the keys were turned in the rusty locks and they entered the ancient vaults," wrote an American newspaper man describing his visit to the prison.

In the grim, forbidding, gloomy pile of San Juan de Ulua the Spanish inquisitors found a building suited to the purposes and one which appealed to their torture-loving tastes. Only a fifteenth century Spaniard could have designed such a castle.

First Field Day at Auburn (N. Y.) Prison.—Despite several hundred light cases of Scarlet fever, at the century old prison at Auburn “on Memorial Day traditions were set aside when the 1,400 prisoners there were given three hours in which to loaf or play and enjoy themselves in the open air,” says the Poughkeepsie Press. “At two o’clock in the afternoon they were marched into the yard in their usual companies, and at a bugle signal they were disbanded. Then they played baseball, and participated in other outdoor sports. There were cheers for the winning contestants and a good time generally. At the end of the three hours the bugle sounded the recall, the companies were formed again, and when the men marched back into the prison there was not a prisoner missing, and there had not been a single infraction of discipline.

“In this instance the short outing was a complete success. It did not destroy discipline, nor will it tend to create the supposition that the men are pampered at Auburn.”

Road Making in New York.—In accordance with the policy of the State Prison Department and by means of an appropriation made at the last session of the legislature, the Department has placed groups of convicts from the various State prisons at work improving roads in different parts of the State. The plan will be extended as fast as possible with the available appropriation and it is hoped that some 500 miles of earth road will be improved during the summer.

At present there are five convict squads on the roads. Three squads have been sent out from Dannemora. They are all engaged in Clinton County one squad improving a bad stretch of the old military turnpike. Two more squads are out from Great Meadow, one working on the Comstock-Whitehall road and the other on the Ticonderoga-Schroon lake road in Warren county.

So far the plan has proved most successful. The convicts are keen for the chance of work in the open air and the result to the counties in which the work is being carried on is gratifying in improved traffic conditions.

Several squads have been made up to be sent out from Auburn prison, but an outbreak of scarlet fever in the institution has delayed the plan. As soon as the quarantine is lifted many prisoners will be put to work.

By the provisions of the new law the thirty-mile radius from the walls of prisons within which convicts could be engaged in road work has been removed, so that they may be employed in any part of the State. In addition to this, for the first time an appropriation has been made of \$50,000 for carrying on the work of improving roads by convict labor. Boards of Supervisors of the various counties are applying to the Prison Department for convicts to improve roads in the counties which are not included in the State macadamized system.

Under the plan of Superintendent Riley the \$50,000 will be spent in improving earth roads rather than trying to build roads of macadam because of the much greater use of the appropriation. Ten miles of good earth road may be built for the amount required to construct a single mile of macadam where gravel or other proper material for surfacing is obtainable. It also costs less to maintain ten miles of gravel road than one mile of macadam, declares Superintendent Riley.

“After the \$100,000,000 to which the State is pledged is expended on the State highways there will be a very large percentage of the roads in the State which will not be touched by this expenditure,” said Superintendent Riley. It is for the good of these roads, many of them of the greatest importance, that he wishes to direct the convict road labor particularly. *Hudson Republican, June 8.*

NOTES

A new county workhouse costing \$25,000 has been built at South Range, Wis., on a tract of 160 acres, which will be worked by the prisoners.

A modified form of self-government has been introduced at the New Jersey State Reformatory at Rahway by Dr. Frank Moore.

Governor Major of Missouri will recommend legislation to provide for a prison farm, 1000 acres in size to start with.

Road work by State prison convicts will start in a few weeks in Wisconsin. The men will be paid a certain sum for their work.

Sir A. Conan Doyle recently visited Sing Sing, and agreed with everybody but the legislators of the State of New York that Sing Sing ought to go.

A commission has been authorized by the State of Pennsylvania and appointed by the Governor, to consider revision of the penal laws. Two of the members of the commission are Edwin M. Abbott of Philadelphia and Warden McKenty of the Eastern Penitentiary.

On the first of July much more stringent regulations regarding the sale and possession of cocaine and other habit-forming drugs came into effect in New York State. A spectacular and effective campaign is now being waged in New York City against dope-vendors.

More than seven hundred prisoners out of 2000 at San Quentin prison have been taking correspondence courses given by the University of California. Spanish is a favorite language to be studied.

At Sing Sing the new warden has started out well. He has given to the inmates Saturday afternoon for recreation, and has introduced base ball and other sports. If it works successfully the inmates will have a recreation hour daily, at the close of the day's work.

Several members of the board of managers of the Prison Association of New York recently made a tour of inspection of correctional institutions in New York, Pennsylvania and the Province of Ontario, being the guests of Mr. Richard M. Hurd in his automobile. The tour included about 1800 miles, and some twenty correctional institutions, among them Clinton and Auburn State Prisons in New York, the Prison Farm at Guelph, Ontario, the new Central Prison site at Bellefonte, Pennsylvania, the State Reformatory of Pennsylvania at Huntingdon, the Eastern Penitentiary of Pennsylvania?, the State Prison at Trenton, New Jersey, the Berkshire Industrial Farm and the State Industrial and Agricultural Farm in New York, and about a dozen county jails. The tour occupied two weeks, and gave a remarkable opportunity to make careful and immediate contrasts of various institutions.

In New York State road work by convicts is assuming important proportions. Superintendent of Prisons John B. Riley is strongly in favor of the outdoor employment of prisoners on roads.

The Prison Commission of New York is investigating the charges of Ex-Warden Clancy that drugs are smuggled into Sing Sing prison by officers and others.

On July 4th, at Great Meadow Prison, six hundred inmates were marched down to the prison ball field, one half mile from the prison, under the supervision of inmate officers. The regular prison guards were not used.

Miss Katherine B. Davis, commissioner of correction of New York City, has been having plenty of activity in the administration of the department. Several riots occurred at the Penitentiary in the early part of July, following effective methods of reducing the amount of "Dope" purveyed by the prisoners. More modern methods of conducting the city's correctional institution and a certain antagonism to the new reform administration of the city's correctional institutions, also played a part. The riots were successfully overcome, and Miss Davis was not only "on the job" but in the midst of it.

In Buffalo, N. Y., a new county jail is to be built for the detention of prisoners prior to or during trial. The Prison Association of New York is making a strong campaign for the erection of a thoroughly modern jail with

outside cells, as contrasted with the old traditional type of inside cages, the prevalent American type of jail construction. In this campaign the Association is cooperating with a group of the Board of Supervisors of Erie county. Among those who have written long letters advocating the outside cell type of construction are Professor C. R. Henderson of the University of Chicago, Commissioner Katherine B. Davis of New York, Dr. Hasting H. Hart of the Russell Sage Foundation, Superintendent Frank Moore of the State Reformatory of New Jersey. Amos W. Butler of Indiana, and Drs. S. A. Knopf and G. M. Parker of New York City. The special committee recently appointed by the Board of Supervisors will visit institutions of both types of construction, among them the Prison Farm at Guelph.

Because of the absence of any work under the proposed State-use system which the prisoners could do, it was found necessary to continue for the present the contract system at the State Prison of New Jersey at Trenton, although by law all contracts should have expired on June 30th.

There is agitation in Baltimore for a State Workhouse similar to that of Occoquan, in the District of Columbia.

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